

22STCV01008 22STCV01008

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-08-13

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Case Number: 22STCV01008 Hearing Date: August 13, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 1:44 PM on August 12, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on August 12, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

This

is an interpleader action whereby Plaintiff law firm seeks to interplead settlement funds.

Moving

Defendants seek an order determining that the settlement was made in good faith.

TENTATIVE RULING

Conditioned upon providing proof of service upon all non-settling parties, the motion for determination of good faith settlement is GRANTED to the reasons set forth in the moving papers.

ANALYSIS

Motion For Determination of Good Faith Settlement

Defendants move for an Order: (i) determining that the global settlement and plan of allocation of the interpleaded fund entered into among Defendants Semyon Ginzburg ("Ginzburg"), Ben Cecchini and Adam Cecchini (the "Cecchinis"), the investor group represented by Benjamin Galdston of Omnum Law APC (the "Investors") and Al McCoskey ("McCoskey") (collectively, the "Settling Parties"), together with Plaintiff Brown Neri Smith & Khan, LLP ("BNSK"), was made in good faith pursuant to California Code of Civil Procedure section 877.6; (ii) barring any and all claims by any non-settling party against any of the Settling Parties or BNSK, including for equitable indemnity, equitable contribution, implied indemnity, implied contractual indemnity, and partial or comparative indemnity arising out of or relating to the subject matter of this litigation; and (iii) authorizing disbursement of the \$1,450,000.00 on deposit in the Court's registry as follows:

1. \$550,000.00 to Lindemann
Law Firm, APC, in trust for Semyon Ginzburg;
2. \$425,000.00 to RFZ Law
LLP, in trust for the Cecchinis;
3. \$425,000.00 to Omnum Law
APC, in trust for the Investors;
4. \$20,000.00 to Catanese
& Wells, A Law Corporation, in trust for Al McCoskey;

5. \$22,000.00 to Brown Neri

Smith & Khan, LLP ("BNSK"), as Plaintiff's recoverable costs pursuant to CCP section 386.6; and

6. The remaining balance

(approximately \$8,000.00) to be divided in equal one-fourth shares

(approximately \$2,000.00 each) among Ginzburg, the Cecchinis, the Investors, and McCoskey (each c/o their respective counsel).

Code Civ. Proc. § 877.6(a)(1)

provides:

Any party to an action

in which it is alleged that two or more parties are joint tortfeasors or co-obligors on a contract debt shall be entitled to a hearing on the issue of the good faith of a settlement entered into by the plaintiff or other claimant and one or more alleged tortfeasors or co-obligors, upon giving notice in the manner provided in subdivision (b) of Section 1005. . . .

(Code Civ. Proc., § 877.6(a)(1).)

At a minimum, a party

seeking confirmation of a settlement must explain to the court and to all other parties: who has settled with whom, the dollar amount of each settlement, if any settlement is allocated, how it is allocated between issues and/or parties, what nonmonetary consideration has been included, and how the parties to the settlement value the nonmonetary consideration.

(Alcal Roofing & Insulation v. Superior

Court (1992) 8 Cal.App.4th 1121, 1129.)

The party asserting the lack of good faith has the burden of proof on that issue. (Code Civ. Proc., § 877.6(d).) The Supreme Court has set forth several factors to consider when determining the good faith nature of a settlement: 1) rough approximate of plaintiff's total recovery, 2) the settlor's proportionate liability, 3) amount paid in settlement, 4) allocation of settlement proceeds among the plaintiffs, 4) recognition that a settler should pay less in settlement that he would if he were found liable after trial, 5) financial condition and insurance policy limits of the settling defendants, 6) the existence of

collusion, fraud, or tortious conduct aimed to injury the interests of non-settling defendants. (Tech-Bilt, Inc. v. Woodward-Clyde & Associates (1985) 38 Cal.3d 488, 499.) In assessing the good faith of any settlement, the trial court must properly consider whether the proposed settlement was within the reasonable range of the settling tortfeasor's total liability, taking into account the settling tortfeasor's potential liability for indemnity. (Far West Financial Corp. v. D&S Co. (1988) 46 Cal.3d 796, 814-815 [bold emphasis added].)

Another key factor is the settling tortfeasor's potential liability for indemnity to joint tortfeasors. (Citation omitted.) The trial court calculates "the culpability of the [settling] tortfeasor vis-à-vis other parties alleged to be responsible for the same injury. Potential liability for indemnity to a nonsettling defendant is an important consideration for the trial court in determining whether to approve a settlement by an alleged tortfeasor. [Citation.]" (Citation omitted.)

(Long Beach Memorial Medical Center v. Superior Court (2009) 172 Cal.App.4th 865, 873 [bold emphasis added].)

Notably, however, the Court only need address the Tech-Bilt factors if an opposition is filed.

"The 'existence of collusion, fraud, or tortious conduct aimed to injure the interests of nonsettling defendants.' [Citations omitted].)

In this case, the settlor's motion for good faith determination in effect noticed a hearing on the issue of good faith and sought to bar any claims for equitable contribution based upon comparative negligence. The Attached [*1261] declaration only referred to the USAA family exclusion in general terms, the existence of the declaratory relief action, and that \$ 60,000 was paid by USAA to settle all claims of plaintiff against settlor, after which the declaratory relief action was dismissed. This motion was made in the usual typical formbook manner. (2 Cal. Civil Procedure Before Trial (Cont.Ed.Bar 1978) § 28.18 & 1986 Supp. §§ 23.37-23.78; Cal. Practice Guide (1986) Personal Injury, form 4:3 at pp. 4-104-4-107.) In regard to the factorial approach of Tech-Bilt, the only factors stated were the amount of the settlement and the policy limits.

It must be noted that all subdivisions of 877.6 enunciate rules of procedure except for subdivision (c) which prescribes a substantive right of discharge from liability. Subdivision (a) in essence grants a hearing by settlor on the issue of good faith upon giving written notice in the manner provided in section 1010 which requires a statement of grounds upon which the motion will be based. Section 1005 further requires that the notice of motion be accompanied by supporting declarations. None of the procedural requirements of section 877.6 have been amended by the Legislature since the Tech-Bilt decision.

This court notes that of the hundreds of motions for good faith determination presented for trial court approval each year, the overwhelming majority are unopposed and granted summarily by the trial court. At the time of filing in many cases, the moving party does not know if a contest will develop. If each motion required a full recital by declaration or affidavit setting forth a complete factual response to all of the Tech-Bilt factors, literally thousands of attorney hours would be consumed and inch-thick motions would have to be read and considered by trial courts in an exercise which would waste valuable judicial and legal time and clients' resources. It must also be remembered that Tech-Bilt was decided on a contested basis. We are unaware of any reported decision which has reversed an uncontested good faith determination and we, therefore, conclude that only when the good faith nature of a settlement is disputed, it is incumbent upon the trial court to consider and weigh the Tech-Bilt factors. That is to say, when no one objects, the barebones motion which sets forth the ground of good faith, accompanied by a declaration which sets forth a brief background of the case is sufficient.

(City of Grand Terrace v. Superior Court (1987)
192 Cal.App.3d 1251, 1261 [bold emphasis added].)

Provided that moving parties have given notice to any non-settling parties, the motion for determination of good faith settlement is GRANTED to the reasons set forth in the moving papers.